

Property & Estate Law

Property is traditionally divided into two main categories, Real Property and Personal Property. Property law for each type of property contains its own set of concepts, laws and principles. The following pages will revolve around explaining these differences.

Part A. Real Property

Real property is land and everything permanently attached to land, such as buildings and other structures. Real property is titled property, meaning it is designated in a deed that lists the owner(s) of the property and how the ownership of the property is held. In Maryland, deeds are recorded with the local government where the property is located, usually in a county or city land records office. In Maryland, land records are part of the Circuit Court office for each county and Baltimore City.

Real property can be transferred by sale, gift, will or intestate succession. Transfer by sale is when a property owner (the seller) sells their property to another person(s) (the buyer), thereby officially transferring title to the new owner(s). The seller is known as the grantor in the new deed and they are granting the property to the new owners (also sometimes known as buyers) who are referred to as the grantees. The deed will indicate the purchase price of the property, the address and description of the property, and how the grantees will hold title.

Read MD Code: [MD Property Code](#)

Titling Real Property.

Real property can be titled in a variety of ways. Most commonly, property is either held in the name of the sole owner, as tenants in common, joint tenants, or tenants by the entireties.

When one owner is involved, the property is traditionally held in that person's name alone as sole owner.

Property can also be titled in two or more people's names as joint owners. Jointly owned property can either be owned with rights of survivorship or without rights of survivorship. Property owned jointly without rights of survivorship is known as property held as tenants in common. In this situation, when one of the tenants in common dies, their share of the property will be transferred either through their last will and testament or, if they died without a will, through intestate succession, to their heirs at law. By contrast, property owned jointly by two or more persons as joint tenants with rights of survivorship means that when one of the joint owners dies, the remaining joint owners on the title will automatically receive the deceased owner's share of the property. If the property is owned as joint tenants, the property will not pass under the deceased owner's will or by intestate succession to their heirs at law. For jointly held property to have a right of survivorship, the deed must explicitly state that the grantees are taking title as "joint owners with rights of survivorship" otherwise it will be presumed they are taking title as tenants in common with no rights of survivorship.

There is also a special way for married couples to title property. For spouses, individuals who are legally married, there is a form joint ownership called tenants by entireties. This is a form of joint ownership with an automatic right of survivorship. The deed does not need to include the

words “with rights of survivorship” it simply needs to state that the parties are taking title as tenants by entirety. In a tenancy by the entirety situation, the surviving spouse will automatically inherit the property on the death of the other spouse. In addition, individuals holding property as tenants by entirety are considered one person under the law. A person with a judgment against one spouse cannot attach or garnish property held as tenants by entirety unless they have a judgment against both spouses.

Forms of Ownership/Possession.

In addition to holding real property individually or jointly, it is important to know the type of property ownership in terms of the type of estate the grantee is purchasing. The main types of property estates including holding property in: fee simple, conditional fee, and leaseholds.

A property held in fee simple means the owner(s) of the real property own the property outright. It is the broadest form of property ownership as it is not subject to any condition or restriction, except for any laws on property use and any recorded restrictions on the property contained in the land records where the property is located. Most property is held fee simple and it is indicated as such on the deed.

A property held in conditional fee estate is when real property is held by a grantee subject to a condition happening or not happening in the future. For example, a grantee may take title to a piece of real property subject to the property not being used for commercial purposes. If the property is used for commercial purposes the grantor or their heirs can reclaim the property through a reverter or reversionary interest in the property.

One specific type of conditional estate is a life estate. Commonly used for estate planning purposes, a life estate gives the grantor the right to live in the property for their lifetime and on their death, the property passes to their remainderman (one or more individuals) listed in the deed. There are two types of life estates, life estates with powers and life estates without powers. A life estate with powers allows the grantor (also known as the life tenant), the ability to sell, gift, mortgage, lease, exchange, etc. the property during their lifetime- everything but transfer the property by last will and testament. If the life tenant does not transfer the property out of their name during their lifetime, on their death it transfers to the remainderman. The life tenant is effectively reserving all powers associated with the property to themselves for their lifetime. A life estate without powers exists when the life tenant gives up the power to sell, transfer, gift, etc. the property during their lifetime without the consent of the remainderman. Benefits to a life estate without powers, include allowing the life tenant to live in the property but effectively removing the property from probate when the life tenant passes, as well as the property no longer being an asset of the life tenant for purposes of Medicaid financial qualification (after five years as a life estate without powers).

A third type of property ownership in a leasehold property. A leasehold property at real property subject held subject to a lease or rental agreement. The owner of the property is usually referred to as the landlord or lessor and the renter is usually referred to as a tenant or lessee. Rental agreements are written contracts between the landlord and the tenant but are usually not recorded in city or county land records. There are different types of lease agreements - the main types are:

- Tenancy for term
- Periodic tenancy
- Tenancy at will

- Tenancy at sufferance

A tenancy for term, also known as a tenancy for years, is characterized by a lease agreement for a specific, fixed period. This type of tenancy has a definite beginning and end date, and it terminates automatically at the end of the term without the need for notice from either party. A periodic tenancy, on the other hand, continues for successive periods (such as month-to-month or year-to-year) until it is terminated by either party with proper notice. This type of tenancy does not have a fixed end date and renews automatically at the end of each period unless notice to terminate is given.

A tenancy at will is a more flexible arrangement where the tenant occupies the property with the consent of the landlord but without a fixed term. This tenancy can be terminated at any time by either party without notice, although reasonable notice is often required by law or custom. Lastly, a tenancy at sufferance occurs when a tenant remains in possession of the property after the expiration of a lawful tenancy without the landlord's consent. This type of tenancy does not grant the tenant any legal rights to the property and can be terminated at any time by the landlord without notice.

Each type of tenancy has distinct characteristics and legal implications, particularly regarding the duration of the tenancy and the notice required for termination. In Maryland, it is typical to require a landlord or tenant to provide thirty (30) days-notice when terminating a tenancy unless the written contract provides for a longer time frame.

Read MD Law: Periodic Tenancy [MD Code, Real Property, 8-402](#)

Restrictions on the Use of Property – Zoning.

Zoning regulations impact the use of real property by establishing specific rules and guidelines that dictate how land and structures can be utilized within different districts or zones. Zoning regulations consider the character and suitability of the district for particular uses of land, such as commercial, agricultural, residential and/or industrial. These regulations aim to conserve property values, encourage orderly development, and ensure the most appropriate use of land.

Local governments have the authority to enact zoning laws to protect and promote public safety, health, morals, and welfare. These laws can include provisions for seeking judicial review of zoning decisions and establishing programs for the transfer of development rights. Zoning regulations can be amended or repealed, and any changes to zoning classifications must be based on findings-of-fact related to population changes, public facilities, transportation patterns, and compatibility with existing and proposed development.

Zoning ordinances typically establish dimensional minimums, such as lot sizes, yard sizes, and building heights, and specify the number of residential units allowed on a parcel of land. They also regulate ancillary requirements like parking and building square footage. Zoning dictates what can be built on a property and how it can be used. If a property owner can demonstrate that zoning actions deprive them of all reasonable use of their property, such actions may be deemed unconstitutional.

Overall, zoning serves to regulate property use through classifications, ensuring that land use aligns with public health, safety, and welfare objectives. It also involves a legislative process for establishing and amending zoning regulations, with local governments playing a crucial role in implementing these controls.

Restrictions on the Use of Property - Building Permits/Safety.

Similar to zoning requirements, a local government can require property owners obtain building permits to commence any new construction, renovations, enhancements, etc. on real property. Building permit applications may require the property owner to submit detailed plans for the construction or improvement being built, information on the proposed contractor to complete the work and pay a fee before a permit will be issued. During construction the permitting agency may conduct routine inspections of the work and require a final inspection before issuing a use and occupancy permit, known as a U&O permit, allowing the property owner to use the new or improved construction.

The purpose of requiring building permits is to ensure construction is done to national and local building standards for safety reasons. For example, an in-ground pool being constructed in Maryland needs to meet certain requirements, including fencing of a minimum height and minimal clearance from the ground to prevent individuals from accessing the pool without the owner's knowledge and consent. This serves to prevent trespassers from accessing the pool and potentially becoming injured or drown.

Restrictions on the Use of Property - Restrictive Covenants and HOA Regulations.

Restrictive covenants and homeowner's association (HOA) regulations can significantly impact the use of real property. Under the Maryland Homeowners Association Act, lots within a community are subject to a declaration, which is enforceable by the governing body of the HOA, as well as other governing documents such as bylaws and rules and regulations. These documents often include covenants, restrictions, or conditions that can dictate various aspects of property use, including architectural guidelines, maintenance standards, and permissible activities.

For instance, restrictive covenants can include provisions that limit the use of properties to residential purposes only, prohibit certain types of businesses, or require adherence to specific aesthetic standards. Additionally, HOAs have the authority to enforce these covenants and may impose fines or other penalties for violations. The Maryland Real Property Code also allows for the creation of solar easements to ensure that solar energy systems are not obstructed, which must be recorded in the land records of the county where the property is located. Moreover, the Maryland Homeowners Association Act provides that HOAs can impose liens on properties for unpaid assessments, which may, in certain instances, take priority over other claims in the event of foreclosure. This ensures that the HOA can maintain common areas and provide services to the community. However, the Act also includes provisions to protect property owners from unreasonable restrictions, such as prohibiting covenants that restrict ownership based on race, religious belief, or national origin. Restrictive covenants and HOA regulations play a crucial role in shaping the use and management of real property, ensuring community standards are maintained while also providing mechanisms for enforcement and dispute resolution.

Read MD Code: [MD Real Property Code Title 11b Maryland Homeowners Association Act](#)

Restrictions on the Use of Property - Easements/Licenses.

An easement is defined as the right to cross or use another person's real property for a specific purpose.

Easements significantly impact the use of real property by creating nonpossessory interests that allow the holder of the easement certain uses of another's real property. These easements can arise through express grant, implication, or prescription.

An express easement by reservation occurs when a property owner conveys part of their property but reserves the right to use some part of the transferred land as a right-of-way.

The location and specifics of an easement can affect the servient estate, which is the property burdened by the easement. Maryland law requires that a deed describe the servient estate with reasonable certainty, although the easement itself need not be described with the same specificity.

A conservation easement restricts the potential uses of land to prevent development for commercial or industrial purposes, providing tax benefits to the landowner.

Easements by prescription require adverse, exclusive, and uninterrupted use of another's property for twenty years, can also impact property use by granting rights to the easement holder without the need for the servient estate owner's permission.

Easements can limit the development and use of real property, requiring property owners to accommodate the rights of easement holders while balancing their own property interests.

A license, similar to an easement, is granting another the right to come onto real property for the license holder's use. However, unlike an easement, which is a grant that is permanent and runs with the land, a license is a personal property right. An example would be allowing someone to hunt on your property. You would grant the hunter a license to come onto your property to hunt based on the criteria you set out in the license. The license is personal to the hunter you gave permission to and does not represent a permanent permission, but one which the licensor can revoke.

Loss of Property

Loss of Property – Foreclosure.

Foreclosure is the process of losing ownership of real property as a result of a creditor, having a lien on the real property, which has not been paid by the property owner pursuant to the terms of a mortgage, deed of trust, judgment lien, etc. This is often the result of a property owner failing to pay a mortgage, but can be the result of any lien being placed against the property.

The foreclosure process in Maryland can be summarized in five (5) steps:

- Mortgage in default.
 - **Default** = 1 day past mortgage due date
 - Lender sends **Notice of Intent to Foreclose** (usually sent 45 days after default) and a loss mitigation application.
- Foreclosure filed in Court
 - Lender's law firm files **Order to Docket**.
 - Can file any time after 45 days from when the Notice of Intent to Foreclose is sent (or 90 days in default)
- **Foreclosure mediation (optional step)**

- Homeowner must file **mediation request** and send a payment of \$50, within 25 days of:
 - The Order to Docket, if final loss mitigation affidavit served at same time
 - Receipt of final loss mitigation affidavit filed after the Order to Docket is filed
 - In either case – 25 days from final loss mitigation affidavit
 - If homeowner does not request mediation, the sale can occur:
 - 45 days after the homeowner has been serviced with the Order to Docket if it has a final loss mitigation affidavit filed with it; or
 - 30 days after the final loss mitigation affidavit is served if it is filed after the Order to Docket is filed
 - Within 5 days of receiving a mediation request, the Circuit Court will forward the request to Office of Administrative Hearings (OAH)
 - OAH will **schedule the mediation** within 60 days of receiving the request. OAH can extend the time up to 30 days for good cause or longer if all parties agree.
 - OAH will send the homeowner a scheduling notice
 - OAH will also include instructions for documents that need to be provided to OAH and the lender's law firm prior to the mediation. These documents should be provided no later than 20 days before the scheduled date of mediation.
 - OAH files a report with the court within 7 days after the mediation
 - If there is no agreement in mediation, the Lender schedules the home for foreclosure sale.
 - The Lender can schedule the sale as soon as 15 days after the mediation has occurred
- Foreclosure Sale
 - Homeowner may file a **motion to stay or dismiss** under [Maryland Rule 14-211](#) if they have a valid defense on why the lender does not have the right to foreclosure on their home.
 - The motion to stay must be filed within 15 days after the mediation is held. If no mediation occurs, then the motion must be filed within 15 days after OAH files its report with the court. This might occur if one party fails to appear for mediation.
 - The homeowner might file a stay if the homeowner has not received a final determination on the completed loss mitigation application that was received by the lender at least 37 days before the sale date.
 - When the lender schedules the foreclosure sale, they must provide notice to homeowner.
 - Notice must be provided no later than 10 days and no sooner than 30 days before the scheduled sale
- Eviction
 - The purchaser from the foreclosure sale files a **Motion for Entry of Judgment Awarding Possession**
 - The Court must issue an order granting possession
 - After the entry of judgment, purchaser must send an eviction notice prior to executing the writ of possession
 - After the eviction notice is served, purchaser must file a request for writ of possession
 - Sheriff then executes the writ and evicts former homeowner

MD Resources on Foreclosure Law: <https://www.peoples-law.org/cat/real-estate-and-other-housing>

Read MD Law: [Md. Code, Real Property § 7-105.1](#); Md. Rules [2-647 \(Enforcement of Judgment Awarding Possession\)](#); [14-102 \(Judgment Awarding Possession\)](#); [14-207 \(Pleadings\)](#); & [14-305 \(Procedure Following Sale\)](#); [COMAR 09.03.12](#)

Loss of Property - Eminent Domain.

Eminent domain is the legal process of the government taking ownership of private property for public use. While this concept is grounded in both the State Constitution and statutory law, these laws also ensure that the private property cannot be taken without due process and fair compensation.

The Maryland Constitution mandates that property cannot be condemned for public use unless compensation is first paid, agreed upon, or awarded by a jury. Maryland's Real Property Code further refines these protections by stating that, "fair market value" is defined based on a willing seller and buyer, excluding value increases resulting from the public project itself.

Maryland Law on Eminent Domain: [MD Real Property Law, Title 12](#)

Loss of Property - Adverse Possession.

Adverse possession is a legal doctrine that allows someone who is not the legal owner of a piece of property to gain lawful title to it if they occupy and use it for a certain period of time under specific conditions. The idea is that land should be used productively, and if the true owner neglects their property for too long while another person openly treats it as their own, the law may eventually recognize the possessor's rights. To succeed in an adverse possession claim, the occupier must typically show that their possession was actual, open and notorious, exclusive, hostile (without permission), and continuous for the statutory period, in Maryland 20 years. These requirements ensure that the true owner had notice and opportunity to assert their rights before losing them.

The doctrine balances property rights with fairness and efficiency. For example, if a person builds a fence or cultivates land under the belief it is theirs, and the true owner never objects, the law may eventually protect that reliance by granting ownership. On the other hand, the doctrine prevents land from sitting idle or abandoned indefinitely. Courts generally interpret adverse possession strictly, as it results in a transfer of ownership without a sale, gift, or inheritance. Because it overrides deeded ownership, adverse possession reflects a policy judgment: encouraging the productive use of land and penalizing owners who ignore their property rights for too long.

In Maryland, like in other jurisdictions, adverse possession is governed by both statutory law and case law, which outline specific requirements that must be met for a claim to be successful. Understanding the nuances of adverse possession law in Maryland is crucial for legal practitioners, property owners, and potential claimants.

Here are the key components to adverse possession law in Maryland:

- **Statutory Period:** Under Maryland law, the claimant must possess the property continuously for a statutory period. The general period required is 20

years (Md. Code Ann., Cts. & Jud. Proc. [§ 5-103](#)), but it can be reduced to 10 years if the possession is based on a color of title and the claimant has paid property taxes on the land during that period (Md. Code Ann., Tax-Prop. [§ 14-108](#)).

- **Actual Possession:** The possession must be actual, meaning the claimant has physically used the land in a manner typical of ownership. This use must be visible and tangible, such as building structures, planting, or fencing (Costello v. Staubitz, 300 Md. 60 (1984)).
- **Open and Notorious:** The claimant's possession of the property must be so conspicuous that it gives notice to the legal owner that someone is asserting a claim against their property. It cannot be hidden or secretive (Senez v. Collins, 182 Md. App. 300 (2008)).
- **Exclusive:** The possession must be exclusive, indicating that the claimant uses the property without sharing control with others, especially the true owner (Porter v. Schaffer, 126 Md. App. 237 (1999)).
- **Hostile:** The possession must be hostile, meaning it is without the true owner's permission. This does not imply ill will but rather that the claimant is using the property as if they are the rightful owner, contrary to the actual owner's rights (Blickenstaff v. Bromley, 243 Md. 164 (1966)).
- **Continuous:** The claimant's possession must be continuous for the entire statutory period, without significant interruption (Miklasz v. G.W. Stone, Inc., 60 Md. App. 438 (1984)).

Adverse possession requires a claimant to demonstrate a set of stringent elements for a continuous period of 20 years: actual, open and notorious, and exclusive use; continuous and uninterrupted use for the required duration; and use that is hostile, under a claim of title or ownership. Failure to meet any of these criteria results in the claim being dismissed.

Read MD Code: [MD Code, Courts and Judicial Proceedings, 5-103](#)
[MD Code 11-108](#)

Part B. Personal Property

Personal property refers to all forms of property that are not classified as real property (land and things permanently attached to it). It includes movable and intangible assets such as vehicles, furniture, jewelry, cash, stocks, bonds, and intellectual property rights. Personal property can generally be divided into two categories: tangible personal property and intangible personal property.

Tangible personal property is property which has physical substance and can be touched or moved (like clothing or electronics).

Intangible personal property is property that represents rights or interests without a physical form (such as patents, bank accounts, or digital assets). Unlike real property, personal property is more easily transferred between owners.

Another key aspect of personal property law is how ownership and possession are distinguished. A person may have legal title (ownership) while another has possession (such as when property is leased, borrowed, or pledged as collateral). Personal property can also be subject to liens or security interests, allowing creditors to claim it if debts go unpaid. Because it is

movable, personal property is particularly important in commercial transactions, where goods, money, and intellectual rights frequently change hands.

Transfer of Personal Property.

Personal property can be transferred in a variety of ways, depending on the nature of the property and the intent of the owner. The most common method is through a sale, where ownership passes from the seller to the buyer in exchange for payment. In such cases, the transfer is typically accompanied by a receipt or bill of sale, which serves as proof of the transaction. For certain types of personal property, such as motor vehicles or boats, the transfer must also be registered with the state, and the title document updated to reflect the new owner. In other cases, personal property may be transferred as a gift, where the owner voluntarily gives possession and ownership to another person without expecting payment. To complete a valid gift, there must be intent to give, delivery of the property, and acceptance by the recipient.

Personal property can also be transferred through inheritance or bequest, where property passes to heirs or beneficiaries after the owner's death, usually according to a will or, if no will exists, by state intestacy laws. Transfers may also occur through operation of law, such as in divorce proceedings, bankruptcy, or by court order. In business settings, property may be transferred as part of a contract, merger, or liquidation. Regardless of the method, the transfer of personal property generally requires clear intent by the current owner and some form of delivery or documentation to establish the new ownership. Properly documenting the transfer helps prevent disputes and protects both the former and new owner's rights.

Part C. Estate Law

Estate Planning.

Estate law is the body of law that governs how a person's property, assets, and obligations are managed and distributed during their lifetime and after death. It includes the creation of wills and trusts, the probate process, and the appointment of executors or administrators to handle a deceased person's estate. Estate law also addresses issues such as taxes, debts, and the rights of heirs and beneficiaries. Its purpose is to ensure an orderly transfer of assets, protect the intentions of the deceased, and provide legal mechanisms for resolving disputes that may arise among family members, creditors, or other interested parties.

Read the Law: [Maryland Code, Estates and Trusts Article](#)
MD Register of Wills Website: <https://registers.maryland.gov/main/home.html>

Estate Planning - Wills.

When a person dies with a valid will that disposes of his property, he dies testate. The term testate derives from the creator of a will. The purpose of a will is to permit individuals to dispose of their assets at death in a clear, orderly manner and to remove fraud and undue influence by others in arranging for that disposition. This will also ensures implementation of the decedent's testamentary intent. The general rule is that the validity of a will is determined by the law of the situs for immovable assets and by the law of the decedent's domicile at death for movable assets. Courts require substantial compliance with statutory formalities to establish the validity of wills. For example, in Maryland, original signatures are required to probate a valid will. any person who is eighteen (18) or more years of age and who is of sound mind may make a will. The procedures necessary to execute a will are relatively simple. Although wills must be in writing,

they may be in any language and may be written in any form which has some permanency. If a person dies without a will, they are said to die intestate, and the laws of the state will govern how their property is divided.

Read MD Law: [MD Code, Estates and Trusts, Title 4 Wills](#)

A large majority of the states allow for a holographic will, a will in the handwriting of and signed by the testator. Although holographic wills must be endorsed, only a handful of states mandate the testator's signature at the end of the document. For the most part, any act performed with the intent of being a signature is sufficient even if it is not legible or not the formal name of the testator. When deemed valid, there is no requirement that holographic wills be witnessed. However, some states do require that a holographic will be dated by the testator.

Estate Planning – Powers of Attorney.

A Power of Attorney (POA) is a legal document that grants one person, known as the agent or attorney-in-fact, the authority to act on behalf of another person, called the principal. This authority can be broad or limited, allowing the agent to manage financial affairs, make legal decisions, or handle specific transactions. Powers of Attorney can be tailored to meet different needs: a general POA grants wide-ranging authority, while a limited or special POA restricts the agent's powers to particular matters. A durable POA remains effective even if the principal becomes incapacitated, while a medical or healthcare POA specifically authorizes the agent to make healthcare decisions if the principal is unable to do so. The purpose of a POA is to ensure that a trusted individual can step in to manage important matters when the principal cannot act personally.

Read MD Law: [Maryland General and Limited Power of Attorney Act](#)

Estate Planning – Living Wills.

A Living Will is a legal document that allows an individual to outline their preferences for medical treatment in the event they become incapacitated and unable to communicate their wishes. It typically addresses end-of-life care decisions, such as whether to use life-sustaining measures like ventilators, feeding tubes, or resuscitation. Unlike a last will and testament, which distributes property after death, a Living Will takes effect during a person's lifetime when they are unable to make medical choices for themselves. Its purpose is to provide clarity to healthcare providers and loved ones, reducing uncertainty and conflict by ensuring that the individual's values and choices guide their medical care.

Estate Planning - Trusts.

A trust is an estate planning device which permits one person to hold legal title to assets while the equitable title rests with the beneficiaries of the trust. Equitable title may be granted in different proportions to the trust beneficiaries. Trusts are major tools in family estate planning because of tax considerations and the management benefits. Trusts originally were used to minimize death taxes and probate expenses on assets transferred from generation to generation. Although this is still a consideration, it is not the sole motivation to create a trust.

An individual may create a trust to ensure that assets are protected for the beneficiaries. For example, if a parent dies with minor children surviving him, a trustee provides not only the management skills necessary to maintain the principal of the trust, but he is also responsible for making distributions for the health, education, maintenance, and support of the beneficiaries. If a parent dies owning a small business, minor beneficiaries will not have the ability, experience, or training necessary to continue the business operation.

An individual may also establish a trust for his own benefit. It is common for individuals to establish trusts while they are capable of managing their own affairs so that if they become incompetent, trust administration can continue.

A Revocable Trust, sometimes called a living trust, is a legal arrangement that allows a person (the grantor) to place assets into a trust while maintaining the ability to alter, amend, or revoke the trust during their lifetime. This flexibility enables the grantor to retain control over the trust property and make changes as circumstances or intentions evolve. Revocable trusts are commonly used as estate planning tools to avoid probate, provide privacy, and ensure a smoother transfer of assets to beneficiaries upon death. However, since the grantor maintains control, the assets in a revocable trust are generally still considered part of their taxable estate and may be accessible to creditors.

An Irrevocable Trust, by contrast, cannot be easily altered or revoked once it has been created and assets have been transferred into it. The grantor relinquishes control over the property placed in the trust, and an appointed trustee manages the assets for the benefit of the named beneficiaries. Because the grantor no longer owns or controls the property, assets in an irrevocable trust are typically shielded from creditors and may provide tax advantages, such as reducing estate taxes. These trusts are often used for asset protection, charitable giving, or long-term wealth preservation, but the loss of flexibility makes them a more permanent and serious estate planning tool.

Read the Law: [MD Code, Estates and Trusts Article, Title 14](#)

Estate Administration.

Estate administration is the legal process of managing and distributing a deceased person's assets, paying their debts, and carrying out their final wishes. If the deceased left a valid will, the process typically begins with probate, where the court validates the will and authorizes the executor to act on behalf of the estate. The executor is responsible for gathering and valuing assets, paying outstanding debts and taxes, and distributing the remaining property to beneficiaries as outlined in the will. Probate ensures that the estate is handled fairly and according to the law, though it can be lengthy and involve court oversight.

If a person dies without a valid will, their estate is distributed through intestate succession, which is determined by state law.

Read MD Law: [Maryland Code, Estates and Trusts, Title 7](#)

Estate Administration – Probate Process.

In Maryland, the probate process is the legal procedure through which a deceased person's estate is administered and their will. The process typically begins when the executor named in the will files a petition with the Register of Wills in the county where the deceased resided. The court then issues letters granting the executor or administrator the authority to manage the estate. The personal representative is responsible for identifying and collecting the decedent's assets, paying outstanding debts and taxes, and distributing the remaining property to beneficiaries according to the will or.

Maryland probate can follow either a summary or full administration process, depending on the size and complexity of the estate. Summary probate is available for smaller estates and is generally quicker and less formal, while full administration is required for larger or more complicated estates, often involving court supervision. Throughout the process, creditors are notified so they can make claims against the estate, and the personal representative must keep detailed records of all transactions. Once all debts and taxes are settled and assets properly distributed, the executor petitions the court to close the estate, officially ending the probate process. This system ensures that the decedent's wishes are honored while protecting the rights of creditors and heirs.

Estate Administration – Intestate Succession.

In Maryland, when a person dies without a valid will, their estate is distributed according to intestate succession laws. These laws establish a hierarchy of heirs to determine who inherits the decedent's property. Generally, the surviving spouse and children have the primary rights to inherit, with specific shares defined by the number of children and whether the decedent was married. If there is no surviving spouse or children, the estate passes to other relatives in a prescribed order, such as parents, siblings, nieces and nephews, and more distant family members. Intestate succession ensures that the estate is distributed according to state law, reflecting what is presumed to be the decedent's likely wishes in the absence of a will.

When there is no will, the probate process without a will begins with the appointment of a personal representative, often called an administrator, by the Register of Wills. The administrator is responsible for collecting the decedent's assets, paying debts and taxes, and distributing the remaining property to heirs according to Maryland's intestate succession laws. Creditors are notified so they can submit claims against the estate, and the administrator must maintain accurate records of all transactions. Depending on the estate's size and complexity, either a summary or full probate process may be required. The court supervises the administration to ensure that the estate is handled fairly, and once all matters are settled, the

estate is formally closed. This process provides an orderly mechanism for transferring property when a decedent dies intestate.

Read the Law: [Maryland Code, Estates and Trusts Article, Title 3](#)